



*Marathwada Legal & General Education Society's*  
**MANIKCHAND PAHADE LAW COLLEGE**  
**CHHATRAPATI SAMBHAJINAGAR**

*Re-Accredited by NAAC with 'B++' Grade (2025)*  
*ISO 21001: 2018*

## **Moot Problem for Preliminary and Semi-Final Round**

The State of Maharashtra vs. Vikram & Anr.

Criminal Appeal No.: 88 of 2026

- The case revolves around a tragic incident occurring on the night of September 25, 2025, leading to the death of Ms. Priyanka, a 26-year-old architect from Nagpur. The respondents in this appeal are Vikram (Accused No. 1), a 28-year-old fitness trainer who was in a romantic relationship with the deceased for three years, and Mr. Ajit (Accused No. 2), the father of the deceased. The relationship between Vikram and Priyanka was marked by frequent arguments and emotional volatility, primarily due to Vikram's possessive behavior and intense jealousy, which was known to their neighbors and family members.
- On the aforementioned date, neighbors reported hearing a violent altercation emanating from Priyanka's apartment, lasting approximately half an hour and involving loud shouts, explicit threats, and the sound of objects being broken. Mr. Ajit, who resided in an adjacent building, heard the disturbance and rushed to his daughter's residence. Upon entering the apartment, he witnessed Vikram and Priyanka engaged in a physical struggle, with Vikram brandishing a heavy brass statue. Overcome with paternal instinct and fury at seeing his daughter being assaulted, Ajit charged toward Vikram. In the ensuing confusion and scuffle, Vikram swung the statue, which struck Priyanka on the temple, causing her to collapse instantly. Both men, in a state of shock and panic, transported Priyanka to the nearest hospital, where she was pronounced dead on arrival. The post-mortem report confirmed the cause of death as "ante-mortem injury caused by a heavy blunt object leading to cranial hemorrhage and shock."
- Following the incident, an FIR was filed by a neighbor, and a criminal investigation was initiated. The State charged Vikram with Murder under Section 101 of the Bharatiya Nyaya Sanhita (BNS), 2023, alleging that he intentionally caused the fatal injury. Ajit was charged with Abetment under Section 106 of the BNS, 2023, based on the prosecution's argument that his intervention, though perhaps well-intentioned, contributed to the chain of events that resulted in the homicide. However, the Sessions Court in Nagpur acquitted

both accused in its judgment dated January 10, 2026. The court concluded that the prosecution failed to prove the necessary mens rea for murder against Vikram . It suggested that the act may have occurred due to grave and sudden provocation under Section 102 of the BNS (culpable homicide not amounting to murder) or by accident during the struggle, potentially covered under Section 24 of the BNS (act done with consent in good faith). Regarding Ajit, the court held that his actions were justified under the right of private defense of another under Section 20 of the BNS and did not amount to abetment.

- The State of Maharashtra, dissatisfied with the acquittal, has now appealed to the High Court of Bombay, contending that the trial court misapplied several provisions of the BNS, 2023. The appeal raises critical questions regarding the interpretation of murder, exceptions thereto, and the scope of abetment under the new legal framework. The case presents a complex interplay of facts and law, requiring meticulous analysis of the statutory provisions and their alignment with principles of justice.

### **QUESTIONS RAISED**

1. Whether the Trial Court erred in its legal interpretation by holding that the actions of Vikram (Accused No. 1) did not constitute Murder under Section 101 of the Bharatiya Nyaya Sanhita (BNS), 2023, and instead erroneously considered exceptions of grave and sudden provocation under Section 102 or accident under Section 24 of the BNS, despite evidence indicating intentional violence?
2. Whether the Trial Court incorrectly applied the right of private defense under Section 20 of the BNS to absolve Ajit (Accused No. 2) of the charge of Abetment under Section 106 of the BNS, 2023, thereby ignoring the causal link between his intervention and the ensuing fatal incident?
3. Participants can raise more issues in this moot problem.

**Note :** The above problem is hypothetical and meant for academic purpose.